

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
RUBEN MALDONADO,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER BRANDON ROMAN,
POLICE OFFICER JORGE FLORESDefendants.
-----X**SUMMONS**

Index No.:

Plaintiff Designates Bronx County
As the Place of Trial

Basis of Venue: Place of Occurrence

To the above-names Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007OFFICER BRANDON ROMAN
Patrol Borough Bronx Community
Response Team
450 Cross Bronx Expressway
Bronx, NY 10457OFFICER JORGE FLORES
Patrol Borough Bronx Community
Response Team
450 Cross Bronx Expressway
Bronx, NY 10457

Dated: New York, New York
July 18, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: *Cody Warner*
CODY WARNER, ESQ

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-----X: :
: :
: **VERIFIED COMPLAINT**: :
: :
: Index No.:

Plaintiff, RUBEN MALDONADO, by his attorney, CODY WARNER, alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the Defendants' arrest of Ruben Maldonado ("Plaintiff") on May 16, 2023. Plaintiff asserts constitutional claims of excessive force and *Monell* liability pursuant to 42 U.S.C. § 1983. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorneys' fees pursuant to applicable state law.

VENUE AND JURISDICTION

2. Venue is proper in Bronx County Supreme Court pursuant to CPLR § 503 because the acts complained of herein occurred in Bronx County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. This action was commenced within three years after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. Plaintiff is a twenty-four-year-old man who resides in Bronx County, New York.

6. Defendant Brandon Roman (“Defendant Roman”) was at the time of the incident an officer, employee, and agent of the New York City Police Department (“NYPD”), which is an agent of the City of New York (“Defendant City”).

7. Defendant Roman is sued in his individual and official capacities. At all times mentioned herein, Defendant Roman acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

8. Defendant Jorge Flores (“Defendant Flores”) was at the time of the incident an officer, employee, and agent of the New York City Police Department (“NYPD”), which is an agent of the City of New York (“Defendant City”).

9. Defendant Flores is sued in his individual and official capacities. At all times mentioned herein, Defendant Roman acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

10. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

11. On May 16, 2023, Plaintiff was riding a motorized scooter to make food deliveries for DoorDash.

12. Near 851 East 161st Street, Bronx, New York, Plaintiff noticed a vehicle following him dangerously close.

13. Plaintiff tried to ride away from the vehicle, but the vehicle sped up to pursue Plaintiff.

14. Unbeknownst to Plaintiff, the vehicle following him was an NYPD vehicle, operated by Defendant Flores.

15. The NYPD vehicle following Plaintiff was unmarked—it did not have conspicuous NYPD decals or police lights on its exterior.

16. The NYPD vehicle following Plaintiff did not turn on sirens or announce any warnings or instructions to Plaintiff.

17. Plaintiff, scared for his safety, continued to flee from the unmarked NYPD vehicle that chased him.

18. Meanwhile, Defendant Roman drove a marked NYPD vehicle that was not behind Plaintiff.

19. At an intersection, while the unmarked NYPD vehicle was chasing Plaintiff, Defendant Roman drove perpendicularly into the intersection via a cross street.

20. Defendant Roman blindsided Plaintiff by crashing into him and knocking Plaintiff off his scooter.

21. Defendant Roman's vehicle then drove over Plaintiff—Plaintiff was under the vehicle's engine and front fascia area when he was extracted by the police.

22. Upon information and belief, the NYPD and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that

resulted in the NYPD chasing Plaintiff without identifying themselves as NYPD. The actions of the NYPD resulted in the unnecessarily violent, forceful, and dangerous takedown of Plaintiff.

23. Upon information and belief, the NYPD and their respective policy and decision makers and supervisors have failed to provide adequate training regarding safely stopping persons riding two-wheeled vehicles.

24. Defendants' use of force to seize Plaintiff was so egregious as to amount to deliberate indifference by the policy and decision makers within the NYPD. The need for enhanced training and supervision is obvious due to the unnecessarily violent takedown of Plaintiff.

25. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD are within the exclusive knowledge of the Defendants.

26. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment, suffering humiliation, and deprivation of his constitutional rights.

CAUSES OF ACTION

First Claim

Excessive Force Under 42 U.S.C. § 1983

27. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

28. By the actions described, Defendant Roman and Defendant Flores deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from excessive and unreasonable force.

29. As a direct a proximate result of the aforementioned conduct of Defendant Roman and Defendant Flores, Plaintiff sustained the damages and injuries hereinbefore alleged.

Second Claim

Governmental Entity “Monell” Liability Under 42 U.S.C. § 1983 Against Defendant City

30. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

31. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his constitutional right to be free from illegal searches and seizures.

32. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising decision or policymaker must, or should, have been aware of.

33. Defendant City’s supervisors, decision or policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who encounter Defendant City’s employees.

34. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff in an amount to be determined by a jury;
- b. An order awarding punitive damages in an amount to be determined by a jury;
- c. Reasonable attorney’s fees and the costs and disbursements of this action; and

d. Such other and further relief as this Court may deem appropriate.

DATED: New York, New York
July 18, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: *Cody Warner*
Cody Warner, Esq.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

I, **CODY WARNER**, an attorney admitted to practice in the courts of New York State, affirm that I am the principal attorney of the firm **CODY WARNER, P.C.**, counsel of record for Plaintiff in the within action. I have read the foregoing and know the contents thereof. The same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by Petitioner is because Petitioner resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: July 18, 2024
New York, NY

Cody Warner

Cody Warner, Esq.
Attorney for Plaintiff

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SUMMONS AND VERIFIED COMPLAINT

CODY WARNER, P.C.

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